



File No.: EXP202205448

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter the claimant) filed a complaint with the Spanish Agency for Data Protection on 20/04/2022. The complaint is directed against QUALITY-PROVIDER S.A. (INGLOBALY), with NIF A87407243 (hereinafter the respondent). The reasons for the complaint are as follows: the claimant states that he was contacted by telephone by the real estate office "Tecnocasa" in the town of Collado Villalba, referencing his data: name, surname, phone number, address, and property ownership, without having communicated them or having expressly authorized any third party to transfer them; upon inquiring how they obtained this data, they confirmed it was through Inglobaly; he requested Inglobaly to know what personal data they held and the cancellation of the same, their response being that he should send them a copy of his ID to proceed with the cancellation, considering this response inappropriate; furthermore, he states that there has been dissemination of this data to third parties without his express consent.

He provides a copy of the emails exchanged with the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 12/05/2022 as noted in the acknowledgment of receipt in the file.

In its response, the respondent indicated the inadequacy of the initiated procedure and the incompetence of the AEPD to process the present file.

THIRD: On 12/05/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On 07/06/2022, the respondent was requested to present the following information regarding the claimant within ten working days.

1. Complete list of the data they hold about the affected individual.
2. Origin of each of the data, detailing the consent or legal basis they have to carry out processing, as well as the date on which they were collected.
3. Details of the transfers or communications of data to third entities, indicating for each transfer the date it was made, the consent of the data subject, or the legal basis.

Details of the data transfers made to TECNOCASA in Collado Villalba of the claimant's personal data, providing:

- Date on which the data was communicated to TECNOCASA
- Contract, invoice, or documentation that allows for the verification of the commercial agreement for the transfer of the claimant's data
- Set of data communicated to TECNOCASA
- Information provided to the data subject that supports the aforementioned data communication
- Consent or legal basis of the affected individual for the transfer of their data to TECNOCASA.

In the response received, the respondent reiterates that there is an inadequacy of the initiated procedure, as well as a manifest incompetence of the Spanish Agency for Data Protection to process

the present procedure under the stipulations of Directive (EU) 2019/1937 of the European Parliament and of the Council, of October 23, 2019, on the protection of persons who report breaches of Union law, which came into force on 17/12/2019, and requests that the AEPD declare itself incompetent and refrain from processing the present file.

Additionally, they claim that the entity is unable to provide information regarding this file since the claimant does not provide a photocopy of the national identity document for identification purposes, which prevents knowing and identifying with certainty which natural or legal person is involved and, therefore, prevents knowing which data is concerned.

They request the Agency to require the claimant to provide a photocopy of the national identity document, forwarding it to the entity in order to know and verify the identity of the person interested in the file, as they have doubts about the identity of the claimant.

Due to the lack of response to the issues raised on 16/08/2022, the entity was again requested, clearly stating that in the previous responses it is not considered that they have answered the requested information and highlighting that the responsible party and the data processor of personal data...

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3/27

Individuals have the obligation to provide the documents, information, and any other collaboration necessary to carry out the inspection function.

The response to the request received on 24/08/2022 is identical to the previous one, maintaining its arguments regarding the incompetence of the Data Protection Agency and its refusal to provide information due to the lack of the claimant's ID.

In the context of AI-55-2023, on 15/03/2023, two inspectors from the Spanish Data Protection Agency arrived at the registered office of the entity being investigated, located at ***ADDRESS.1 for the purpose of conducting an inspection.

The doorman of the building was consulted twice, informing the inspectors that the entity being investigated is located on the 5th floor, left side.

Upon arriving at the mentioned address, they encountered two receptionists and a person who did not identify themselves to the inspectors.

At the reception desk, the name RAHEEM GL is displayed, and the aforementioned person informs that they have nothing to do with the entity being investigated, although the place where the inspectors are located rents offices for events to different companies, including the entity being investigated.

They inquire how often meetings are held in these rooms, receiving an imprecise response that they occur every few months.

The interlocutor is informed that the entity being investigated was notified on March 8 at 11:44 AM via a phone call to the number ***PHONE.1, and in response, they indicate that the entity has been informed that they have contacted the Spanish Data Protection Agency to cancel the inspection, with no record of any call or email.

A contact phone number and a registered office of the entity being investigated are requested, but they refuse to provide any information so as not to harm their supposed client, only limiting themselves to stating that they are in Alicante, without specifying the municipality or address.

Due to the refusal to provide any type of information or identify the company whose registered office is at ***ADDRESS.1, the acting inspectors leave the premises.

A certified letter has been sent to the same address notifying of the inspection, so that representatives of the entity can appropriately attend to the inspectors from the Agency, having received the following response:

“Therefore, both the Administrator of the company and the Legal Department of this company will attend the summons on March 27, 2023, at 10:00 AM, at our registered office at Calle Goya 18, WE WILL NOT ALLOW THE ENTRY OF INSPECTORS FROM THE AEPD.”

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4/27

A clearly obstructive attitude towards the inspection actions of the Agency's officials is perceived, which leads to the corresponding actions being taken regarding the aforementioned conduct in the procedure PS/00204/2023.

On 15/02/2023, the entities Estudio Villalba Antique, S.L. (hereinafter EVA), Estudio Nuevo Villalba, S.L.U., Estudio Villalba Estación, S.L.U., and Estudio Villalba 2017, S.L. were requested to respond to the following questions:

- Corporate name and CIF of your entity
- All documentation justifying the purchase or transfer of data to INGLOBALY and/or QUALITY PROVIDER.
- Copy of the data acquired from Mr. A.A.A. with NIF ...
- Treatments carried out with said data
- List of calls made to Mr. A.A.A.

EVA responded on 15/03/2023 stating that:

- Corporate name: Estudio Villalba Antique, S.L. and CIF: B88080031
- Attached invoice for the information services contracted with QUALITY PROVIDER.
- Indicated that: "This entity made a call to the subject in question in March 2022. This person, in April 2022, called this entity requesting the cancellation of their data, which was immediately attended to in order to respond to their request and provide personal attention to it, proceeding immediately to the deletion of their data in response to the request received and in compliance with the aforementioned legislation in this document."

Estudio Nuevo Villalba, S.L.U. responded on 15/03/2023 attaching the same document provided by Estudio Villalba Antique, S.L.

Estudio Villalba Estación, S.L.U. responded on 15/03/2023 stating that:

- Corporate name: Estudio Nuevo Villalba, S.L.U., and CIF: B87489373
- Attached invoice for the information services contracted with QUALITY PROVIDER.
- Indicated that: "This entity has no data regarding the referred person" and "This entity never processed the referred data as of the date of the request" and "No calls were ever made from this entity to the mentioned individual."

Estudio Villalba 2017, S.L. responded on 16/03/2023 stating that:

- Corporate name: Estudio Villalba 2017, S.L., and CIF: B87904553
- Attached invoice for the information services contracted with QUALITY PROVIDER.
- Indicated that: "This entity has no data regarding the referred person" and "This entity never processed the referred data as of the date of the request."

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5/27

referred to" and "No calls were ever made from that entity to the individual mentioned."

FIFTH: On 17/04/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged violations of Articles 6.1 and 17 of the GDPR, classified under Article 83.5.a) and b) of the GDPR.

SIXTH: Upon notification of the initiation agreement, the respondent submitted a written statement of allegations on 26/04/2023, in which, in summary, he indicated that: the inadequacy of the initiated procedure and the incompetence of the AEPD in processing the present matter under the provisions of Directive (EU) 2019/1937 of the European Parliament and of the Council, and the impossibility of providing information since the complainant did not provide a photocopy of the national identity document for identification purposes, requesting that the Agency ask the complainant for such a copy.

In response to the issues raised concerning the present procedure, he stated that there is no infringement; the lack of transparency of the Agency; that the Director's position has expired; the low evidentiary value of the submitted evidence; that the respondent does not own any files; that the data was obtained from publicly accessible sources, making consent unnecessary; violation of the respondent's rights; that there has been no obstruction to the inspection work; etc., and the filing of the procedure.

On 21/03/2023, he submitted a new written statement indicating that the Agency should provide him with a photocopy of the complainant's ID or, if applicable, the complaint itself.

SEVENTH: On 28/06/2023, it was agreed to open a period for the practice of evidence, agreeing on the following:

- To consider the complaints filed by the complainants and their documentation as reproduced for evidentiary purposes, along with the documents obtained and generated by the Inspection Services that are part of the file.
- To consider the allegations against the initiation agreement presented by the respondent as reproduced for evidentiary purposes.
- To request a copy of the complainant's ID.

EIGHTH: On 26/07/2023, a Proposal for Resolution was issued stating that the Director of the Data Protection Agency should sanction the respondent for violations of Articles 6 and 17 of the GDPR, classified under Articles 83.5.a) and 83.5.b) of the GDPR, with fines of €10,000 (ten thousand euros) for each of them.

On 03/08/2023, the respondent submitted a written statement of allegations regarding the aforementioned Proposal, reaffirming those already made throughout the procedure and, in addition, referring to files and procedures resolved by the AEPD that he qualifies as unusual and illegal, asserting that the present file is pure invention.

NINTH: From the actions taken in the present procedure, the following have been accredited:

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6/27

PROVEN FACTS

FIRST. On 04/20/2022, the AEPD received a written complaint from the claimant; the reasons for the complaint are that they were contacted by telephone by the real estate agency "Tecnocasa" in the town of Collado Villalba, who conveyed their data: name, surname, phone number, address, and ownership of a property without having communicated them or having expressly authorized any third party to transfer them; when inquiring how they obtained this data, they confirmed that it was through INGLOBALY (the respondent); the claimant requested to know what personal data they held and the cancellation of the same, to which their response was that they must send a copy of their ID to proceed with the cancellation.

SECOND. The claimant provided emails dated 04/20/2022 exchanged with ***EMAIL.1:

"Good morning:

From Tecnocasa in Collado Villalba, I am informed that they obtained my phone number as well as my contact address through their platform.

I would like to confirm if this information is correct. If it is true, I request the immediate deletion of this data from your platform, which I have not expressly authorized to have, let alone to transfer it to third parties.

On the other hand, if the transfer of my data to this company is true, I will consider taking legal action for the transfer of my data and the damages arising from such transfer.

(...)"

In the response email, ***EMAIL.1 stated:

"Hello, from Inglobaly we acknowledge receipt of your request for the cancellation of the personal data held in our file, and to process it we inform you of the following:

To exercise your right of cancellation, and as this is a personal right, as provided in Article 23 of the

Organic Law on the Protection of Personal Data, along with the request, you must prove the identity of the requester by providing a scanned copy of the front of your ID or a document digitally signed by you, since, as the law states, the exercise of these rights is of a personal nature, in accordance with what is established in the Articles of the current Regulation of the Organic Law on the Protection of Personal Data that I present to you below.

As soon as you send me your ID or digitally signed document, we will proceed with your removal from the file and subsequently, we will inform you that this has been carried out appropriately.

You can do this through this same channel by sending me an email.”

The claimant:

“Please, prior to sending this documentation on my part, I request that you send me the document of express transfer of my data to your platform where the corporate name of the same is indicated and my authorization for the maintenance of my data and transfer to third parties. If you do not have it, you would be committing an illegality and therefore, it is not appropriate for me to send any type of document or cancellation request.”

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7/27

Regarding the rectification of my data, as it is not legal for them to have it. In this second case, I will initiate the legal actions provided for under the LOPD.

I await your response. In the event of not receiving a response to this email, I will assume that we are faced with the second option regarding the authorization for the transfer of my data.”

In the response email from ***EMAIL.1:

“Hello,

As we indicated in the previous email, to exercise your rights of access, rectification, cancellation, and opposition (ARCO Rights), you must send us your ID or a digitally signed document that proves your identity, as these rights are personal and can only be exercised by the affected party.”

The claimant:

“I proceed to notify the Spanish Data Protection Agency of the refusal to send the signed express transfer document on my part.”

THIRD. The company EVA, in response to the request from the acting Inspector via a letter dated 03/15/2023, has provided invoice ***NUMBER.1, dated 12/27/2022, corresponding to the information services contracted with the respondent, which certify the relationship maintained with it.

It states that regarding the claimant's data acquired from the respondent, the full name and phone number were obtained.

And that “This entity made a call to the subject in question in March 2022. This individual, in April 2022, called this entity requesting the cancellation of their data, which was immediately attended to in order to respond to their request and provide personal attention to it, proceeding immediately to the deletion of their data in response to the request received and in compliance with the aforementioned legislation in this document.”

FOURTH. In response to the information request made by the acting Inspector dated 05/12/2022, in which the following was asked:

- Complete list of the data they have on the affected party
- Origin of each of the data, detailing the consent or legal authorization they have to carry out treatments, as well as the date on which they were collected
- Details of the transfers or communications of data to third parties, indicating for each transfer the date it was made, the consent of the data subject, or the legal authorization.
- Details of the data transfers made to TECNOCASA in Collado Villalba of the personal data of the claimant, providing:

☐ Date on which the data was communicated to TECNOCASA

☐ Contract, invoice, or documentation that allows for the verification of the commercial agreement for

the transfer of the claimant's data

☐ Set of data communicated to TECNOCASA

☐ Information provided to the data subject that supports the aforementioned data communication

☐ Consent or legal authorization of the affected party for the transfer of their data to TECNOCASA, the respondent on 05/18/2022 alleged the inadequacy of the procedure initiated by the Agency for the processing of this file and its incompetence to process the matter and in response to the requested information that "this party is unable to provide information related to this file since the claimant does not provide a photocopy of the national identity document for the purpose of being able to identify them, which prevents this party from knowing and reliably identifying which natural or legal person it concerns and, therefore, prevents knowing which data is involved" and requested the Agency to "verify and identify the claimant, requesting this Agency to require the submission of a photocopy of their national identity document, forwarding it to this party in order to know and verify the identity of the person interested in the file."

It also claimed that the position of the Director of the AEPD had expired as the term of 5 years for which they were appointed had elapsed.

FIFTH. On 06/07/2022, due to the lack of response from the respondent, the request was reiterated, and the response from the respondent on 06/16/2022 was that they had already responded to the request on 05/18/2022, attaching the proof of registration of that response, requesting that the current request be considered answered.

SIXTH. On 08/17/2022, due to the lack of response to the requested information, the request was reiterated with the warning that "the person responsible and the processor of personal data have the obligation to provide the documents, information, and any other collaboration necessary to carry out the inspection function.

Failure to comply with this obligation could result in the commission of the infringement typified in art. 72.1.ñ) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR."

The response from the respondent on 08/24/2022 was identical to that offered in the first request.

SEVENTH. In a letter dated 03/03/2023, the respondent requests the AEPD to require the claimant to provide a photocopy of their ID, and to forward it to them "in order to know and verify the identity of the person interested in the above-referenced file, as this party has certain doubts about the identity of the claimant."

EIGHTH. On 02/15/2023, the entity EVA was requested to respond to the following questions:

- Company name and CIF
- Documentation justifying the purchase or transfer of data to INGLOALY and/or QUALITY PROVIDER.
- Copy of the data acquired from the claimant.
- Treatments carried out with said data
- Calls made to the claimant.

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9/27

NINTH. EVA responded on 03/15/2023 stating that: "This entity made a call to the subject in question in March 2022. This individual, in April 2022, called this entity requesting the cancellation of their data, which was immediately attended to in order to respond to their request and provide personal attention to it, proceeding immediately to the deletion of their data in response to the request received and in compliance with the aforementioned legislation in this document."

And provided an invoice for the information services contracted with the respondent.

TENTH. On 04/26/2023, the respondent submitted new writings reiterating the allegations and arguments previously made.

ELEVENTH. In a new writing dated 06/08/2023, the respondent basically reproduces what has already been argued and alleged in previous writings.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

First of all, it is necessary to refer to the formal exceptions raised by the respondent before addressing the substantive issues.

- First, regarding the allegation related to Directive (EU) 2019/1937, it is noteworthy that Article 1 of the same states that its purpose is to strengthen the application of Union law and policies in specific areas by establishing common minimum standards that provide a high level of protection for individuals who report infringements of Union law, with the personal scope of application outlined in Article 4, which is limited to whistleblowers working in the private or public sector who have obtained information about infringements in a work context.

Additionally, Article 17 states that any processing of personal data carried out under this Directive, including the exchange or...

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10/27

Transmission of personal data by the competent authorities shall be carried out in accordance with Regulation (EU) 2016/679 and Directive (EU) 2016/680. Thus, the main objective of this Directive is to protect those who report infringements or irregularities in a company through a specific channel without facing reprisals.

For its part, the first paragraph of Article 1 of the GDPR proclaims that the Regulation establishes the rules regarding the protection of natural persons with regard to the processing of personal data and the rules regarding the free movement of such data. It adds in its second paragraph that it protects the rights and fundamental freedoms of natural persons and, in particular, their right to the protection of personal data.

Regarding the material scope of application of the GDPR, it is limited to what is prescribed in its Article 2, where it specifies in its first paragraph that it applies to the total or partial automated processing of personal data, as well as to the non-automated processing of personal data contained in or intended to be included in a file.

Furthermore, Article 51.1 of the GDPR stipulates that each Member State shall provide that one or more independent public authorities (hereinafter "supervisory authority") shall be responsible for monitoring the application of this Regulation, in order to protect the rights and fundamental freedoms of natural persons in relation to processing and to facilitate the free movement of personal data within the Union, developing the functions of each supervisory authority in its Article 57.

For its part, the LOPDGDD in its Article 47 establishes the functions and powers of the Spanish Agency for the Protection of Data, among which is the supervision of the application of the GDPR, and in its Title VIII, the procedures in case of possible breaches of data protection regulations are regulated.

Therefore, Directive (EU) 2019/1937, contrary to what the respondent claims, does not modify the GDPR nor does it render the LOPDGDD obsolete, with the respondent suffering from an excess of normative voluntarism, but rather it is a norm with an object and scope of application clearly distinct from that of the GDPR and, therefore, from the LOPDGDD. Thus, the allegations made by QUALITY

regarding the inadequacy of the procedure initiated by the Spanish Agency for the Protection of Data for the processing of the present file are completely unfounded.

- The respondent alleges the incompetence of the AEPD for the processing of the present matter; it should be noted that Article 47 of the LOPDGDD establishes that: "It is the responsibility of the Spanish Agency for the Protection of Data to supervise the application of this organic law and Regulation (EU) 2016/679 and, in particular, to exercise the functions established in Article 57 and the powers provided for in Article 58 of the same regulation, in this organic law and in its development provisions."

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11/27

Furthermore, it is the responsibility of the Spanish Agency for Data Protection to perform the functions and powers attributed to it by other laws or regulations of European Union law.

- The respondent claims that it lacks personal data of the complainant, accusing the AEPD of a lack of legal rigor and absence of transparency.

In this regard, it is noted that the alleged infringements that initiate this sanctioning procedure include one related to the lawfulness of the processing of the complainant's data by the respondent, both infringements being the cause of the agreement to initiate the sanctioning procedure. The processing is evidenced not only by the statements made by the complainant but also by the company EVA. Moreover, the respondent's activity of processing personal data has already been established in firm resolutions of this Agency, such as in the sanctioning procedure EXP202103457.

- The respondent alleges that there is no obstruction to the inspection work of this Agency due to the fact that Royal Decree 389/2021, of June 1, abolishes the Data Inspection; it forgets that, although the Data Inspection as a governing body is abolished, the General Subdirectorate of Data Inspection is the equivalent body in the organizational structure of this Agency, with its competencies and functions defined in Article 27 of said Royal Decree, and therefore, this Subdirectorate maintains its competencies as stated in that article.

Furthermore, as already mentioned, the facts referred to by the respondent are not the subject of this procedure and are being pursued in PS/00204/2023.

- The respondent claims that the Director is not authorized to address the present issue as her mandate has expired and there is an alleged usurpation of a public position.

It is sufficient to remind the respondent of what was stated by the National Court in its Judgment of 09/12/2022:

"Firstly, it alleges the nullity of the contested resolution ex article 47.1 of Law 39/2015, of October 1, due to the manifest incompetence of the person signing it, as her mandate has expired, having completed 4 years since the date of her appointment, and also because the condition under which it was issued was non-existent at the time of adoption, in accordance with the provisions of the sole additional provision of Royal Decree 389/2021, which approves the Statute of the Spanish Agency for Data Protection.

To this end, it states that according to Article 14.3 of the 1993 Statute applicable here, the mandate of the Director of the Data Protection Agency shall last four years from the date of appointment and shall only cease for the reasons provided in Article 15 of said Statute. It indicates that, in this regard, the 1993 Statute differs from that approved by Royal Decree 389/2021, of June 1, whose Article 12.3 does provide that the outgoing President shall continue in office until the new President takes office, but since it does not foresee any transitional provisions in this regard, just as it does not foresee any..."

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12/27

provided in the LOPDGDD regarding the performance of the functions of the position of Director of the AEPD until the new appointment of the new President of the same, the term of the Director, whose appointment was made on July 24, 2015 (published in the BOE on July 25, 2015), expired on July 24, 2019, upon the completion of four years since their appointment.

And having ceased in their functions as Director of the AEPD, they lacked the competence to issue the agreement to initiate the file on which the contested resolution of October 7, 2020, fell, and the contested resolution itself, citing the judgments of June 16, 2017, issued in Rec. 1585/2016 and Rex. 1655/2016, and June 20, 2017 (Rec. 2463/2016).

Furthermore, it is argued that according to the provisions established in the Sole Additional Provision of Royal Decree 389/2021, which approves the Statute of the Spanish Agency for Data Protection, the executive body Director of the AEPD is abolished, so, in their understanding, and in the absence of a transitional provision that provides for the maintenance of said position, all administrative acts issued by the Director of the AEPD would additionally incur a defect of legality that derives from the non-existence of the body that issued them.

For its part, the State Attorney argues that neither the LOPD of 1999 nor the LOPDGDD contemplate an automatic term of the mandate, in such a way that when the term of the mandate for which the Director was appointed is fulfilled, they cease to have any competence, but rather a Royal Decree of cessation is necessary, without being able to abandon the position of their own will if there has been no Royal Decree of cessation from the Government.

That this is the case is demonstrated not only by the fact that none of the Directors of the AEPD have ceased in their position merely due to the passage of time, requiring a Royal Decree for cessation, but also that in no case has there been an "abandonment" of the position by its holder upon reaching the fourth anniversary of the appointment. In fact, abandonment of service was considered a crime until the Penal Code of 1995, which decriminalized such conduct in most cases; however, it constitutes an administrative infraction (very serious disciplinary offense), art. 95.2 of the consolidated text of the Basic Statute of Public Employees approved by Royal Legislative Decree of October 30, or art. 6.c) of the Disciplinary Regime Regulation of Civil State Administration Officials, approved by RD 33/1986, of January 10.

It adds that, in any case, there is the general principle of law of conservation in the appointment of the position, so, in the new Statute of the AEPD, to avoid these speculations, it is expressly established that the person holding the Presidency will continue in functions until the taking of possession of the new holder of the Presidency.

Finally, it argues that the judgments cited by the appellant are not applicable to the present case, in which regarding the Director of the AEPD, the legislator neither establishes the automatic expiration of the appointment, nor has it been understood as such by the Government, nor does it foresee the need for an express agreement of extension or the calling of a competition, for the appointment, upon reaching the term for which it was appointed, to continue in its effects.

Having presented the positions of the parties, we must start from art. 53, section 3, of the RGPD, as it indicates that the members of the supervisory authority "shall conclude their functions in the event of termination of the mandate, resignation or mandatory retirement, in accordance with the law of the Member State concerned."

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13/27

In the internal sphere, Article 36.1 of Organic Law 15/1999, of December 13 (LOPD), which is the applicable regulation at the time of the appointment of the Director of the AEPD, establishes that the Director of the AEPD shall be appointed by Royal Decree for a period of four years. Paragraph 3 of the same provision states that before the expiration of this term, the Director of the AEPD shall only cease to hold office at their own request or by separation agreed upon by the Government due to serious breach of their obligations, subsequent incapacity to perform their function, incompatibility, or conviction for a criminal offense.

That is to say, once the term of four years has elapsed, the Government may dismiss the Director without the need for cause; however, this does not imply that when this term is fulfilled, their position automatically ceases to be effective and that they no longer have any functions or competencies, as this is not expressly stated in the aforementioned LOPD, nor in Organic Law 3/2018, of December 5 (LOPDCCDD), in its Article 48 regarding the Presidency of the AEPD.

This has been understood and practiced by all Governments that proceed to expressly dismiss the Directors of the AEPD by Royal Decree, even when their term of appointment has expired, without their positions ceasing to be effective and in function until their respective dismissals and the concurrent appointments of their successors in office, to avoid gaps in the institution.

This is in accordance with the principles of responsibility and continuity of institutions, to prevent the institution from becoming inoperative when the appointment of a new person to the position has not occurred.

The legislator could have expressly established the automatic provision for the decay of the position, that is, that the effectiveness in the position ceases at the very moment the term is fulfilled, but it has not done so either in the LOPD or in the current LOPDGDD, nor in Royal Decree 389/2021, of June 1, 2021, which approves the new Statute of the AEPD, which precisely in Article 12.3 establishes that "the person holding the outgoing Presidency shall continue in functions until the new person holding the Presidency takes office," without establishing any limitations regarding the exercise of their functions or competencies during the period in office, which was also not established in the previous regulations.

Therefore, since no limitations have been established on the actions of the Director of the AEPD in office, unlike what occurs, by way of example, in Article 21.2 of Law 50/1997, of November 27, on the Government, which establishes that the Government "continues in functions until the new Government takes office, with the limitations established in this Law," the Director of the AEPD has the competence to issue the contested resolution, as well as the agreement to initiate the sanctioning procedure.

In this context, it cannot be deemed that the condition under which the Director of the AEPD issued the contested act is nonexistent.

On the other hand, the doctrine established by the Supreme Court in the aforementioned rulings pertains to a case that bears no resemblance to the current case, and therefore is not applicable here.

Indeed, these rulings address Royal Decree 123/1997, of May 13, which approves the General Regulation of Positions and Professional Promotion of the officials of the Administration of the Government of Catalonia, and refer to a provisional coverage of the position, through the figure of the assignment of functions, due to the existence of urgency. An autonomous decree that specifically provides that such appointment shall automatically become ineffective if, within a period of 6 months, a competition for the provision of the position has not been called.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
14/27

work and furthermore that said official may not continue in the exercise of their functions, a situation that is different from that provided for the Director of the AEPD, since the previous Statute did not mention this eventuality and the current one expressly provides for the extension of their functions. The reason, therefore, must be dismissed."

- The respondent claims that in the initiated procedure the Agency bypasses the rules regarding the duration of the period for resolution, which is six months.

The agreement to initiate the present procedure, in the penultimate paragraph, already stated that the procedure will have a maximum duration of nine months from the date of the initiation agreement or, where applicable, from the draft initiation agreement.

Article 64, Form of initiation of the procedure and duration, of the LOPDGDD establishes that:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law. In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted.

2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 and this organic law, it will be initiated by an initiation agreement adopted on its own initiative or as a result of a claim.

If the procedure is based on a claim made to the Spanish Agency for Data Protection, prior to this, it will decide on its admission for processing, in accordance with the provisions of Article 65 of this organic law.

When the rules established in Article 60 of Regulation (EU) 2016/679 are applicable, the procedure will be initiated by the adoption of the draft initiation agreement for sanctioning procedures, which will be formally communicated to the interested party for the purposes provided for in Article 75 of this organic law.

Once the claim is admitted for processing, as well as in cases where the Spanish Agency for Data Protection acts on its own initiative, prior to the initiation agreement, there may be a phase of preliminary investigative actions, which will be governed by the provisions of Article 67 of this organic law.

The procedure will have a maximum duration of nine months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire and, consequently, the file of actions will occur.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/27

3. The procedure may also be processed as a result of the communication to the Spanish Agency for Data Protection by the supervisory authority of another Member State of the European Union of the claim made to it, when the Spanish Agency for Data Protection has the status of the main supervisory authority for the processing of a procedure in accordance with the provisions of Articles 56 and 60 of Regulation (EU) 2016/679. In this case, the provisions of paragraph 1 and the first, third, fourth, and fifth paragraphs of paragraph 2 will apply.

4. The processing deadlines established in this article, as well as those for admission for processing regulated by Article 65.5 and the duration of the preliminary investigative actions provided for in Article 67.2, will be automatically suspended when information, consultation, request for assistance, or mandatory opinion from an organ or body of the European Union or one or more supervisory authorities of the Member States must be obtained in accordance with the provisions of Regulation (EU) 2016/679, for the time that elapses between the request and the notification of the opinion to the Spanish Agency for Data Protection.”

However, the respondent is informed that following the reform carried out by paragraph four of the ninth final provision of Law 11/2023, of May 8, transposing European Union directives on the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and which modifies Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials (“B.O.E.” May 9), Article 64 of the LOPDGDD has been amended.

- Finally, regarding the respondent's assertion that the resolution has been communicated outside the period allowed by law, it is noted that, on April 17, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate the present sanctioning procedure, where it was informed that the procedure will have a maximum duration of nine months from the date of said Agreement, in

accordance with the provisions of Article 64 of the LOPDGDD.

Therefore, a resolution has not yet been issued, and the prevailing deadline by the principle of normative specialty is that indicated in the aforementioned initiation Agreement.

III

The reported facts materialize in the illegitimate processing of the claimant's data, considering that their acquisition has been carried out illegally, which could violate the regulations on the protection of personal data.

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/27

d) order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified timeframe;

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)"

IV

Article 6, Lawfulness of processing, of the GDPR in its paragraph 1, establishes that:

"1. Processing shall be lawful only if at least one of the following conditions applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

"1) 'personal data': any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them."

V

The infringement of Article 6.1 of the GDPR attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is subject to penalties, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of limitation that they are: "Very serious infringements:

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a limitation period of three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)"

VI

1. It should be noted that the processing of data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the performance of a contract to which the affected party is a party or for the implementation, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the rights and freedoms of the data subject which require protection of personal data.

18/27

fundamental freedoms of the affected party that require the protection of such data. The processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In this case, the respondent has not demonstrated any legitimate basis as provided in Article 6.1 of the GDPR for the processing of the claimant's personal data.

2. The respondent has not demonstrated the origin of the claimant's data, although in its writing dated 27/04/2023, it stated that "the displayed data are basic data, obtained from legally established Public Registers, and consent from the affected party is not required."

In relation to this issue, it should be noted that the concept of "public access sources," contrary to what was stated in the former LOPD, does not appear in the current GDPR as a legitimizing basis, so the need to demonstrate a legitimate basis as established in Article 6.1 of the GDPR applies in any case. If it is considered that the data was legitimately obtained from a third party, not from the data subject themselves, the respondent should have communicated the acquisition of the data to the claimant, either at the time they were obtained or when they were used for commercial purposes, or at the time the personal data was communicated for the first time, and in any case within a maximum period of one month, in accordance with Article 14 of the GDPR.

In this regard, it should be indicated that, in any case, the respondent should have communicated the acquisition of the data to the claimant, either at the time they were obtained or when they were used for commercial purposes.

As a result, the respondent has violated Article 6 of the GDPR, in accordance with the legal basis II, as it is understood that we are facing an unlawful processing of data.

3. It is established in the proven facts that the company EVA has provided invoice ***NUMBER.1, dated 27/12/2022, corresponding to the information services contracted with the respondent, which proves the commercial relationship maintained with it.

It has also stated that the claimant's data acquired from the respondent corresponds to their full name and phone number.

EVA made a call to the claimant in March 2022, and the claimant, in April, contacted the entity requesting the cancellation of their data, which was immediately attended to in order to respond to their request and in compliance with the legislation contained in this document.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/27

However, the respondent's response to the requested information, in which they were asked:

"Complete list of the data they hold about the affected party

Origin of each of the data, detailing the consent or legal basis they have to carry out processing, as well as the date on which they were collected

Detail of the transfers or communications of data to third parties, indicating for each transfer the date it was made, the consent of the data subject, or the legal basis.

Detail of the data transfers made to TECNOCASA in Collado Villalba of the claimant's personal data, providing:

- Date on which the data was communicated to TECNOCASA
- Contract, invoice, or documentation that allows for the verification of the commercial agreement for the transfer of the claimant's data
- Set of data communicated to TECNOCASA
- Information provided to the data subject that supports the aforementioned data communication
- Consent or legal basis of the affected party for the transfer of their data to TECNOCASA," (the underlined portions correspond to the AEPD)

was the inadequacy of the procedure initiated by the Agency and its incompetence for processing the matter, and it was unable to provide information related to this file because the claimant did not provide a photocopy of their national identity document for identification, and moreover, paradoxically, requested the Agency to require the claimant to provide their ID so that this agency could forward it to identify the claimant; a request that is quite paradoxical.

However, as stated at the beginning of this number, not only did they not have the claimant's data, but they had no qualms about doing business with the company EVA, as evidenced by the issued invoice, using the data of the latter.

This behavior evidences the violation of Article 6.1 of the GDPR, as they lack any legitimacy for the processing of the claimant's data, an infringement that is classified in Article 83.5.a) of the GDPR.

VII

Secondly, the exercise of the right to erasure is regulated in Article 17 of the GDPR, which establishes:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/27

- c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and no other legitimate grounds for processing prevail, or the data subject objects to the processing pursuant to Article 21, paragraph 2;
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased to comply with a legal obligation established in Union or Member State law applicable to the data controller;
- f) the personal data have been obtained in relation to the offering of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any link to those personal data, or any copy or replication of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation that requires the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 is likely to make impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims.”

VIII

The infringement of Article 17 of the GDPR is classified in Article 83.5.b) of the aforementioned GDPR as follows:

“5. The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to EUR 20,000,000 or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

(...)

- b) the rights of data subjects under Articles 12 to 22;

(...)”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/27

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

And in its Article 72, for the purposes of prescription, qualifies as “Infringements considered very serious”:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

- k) The hindrance or obstruction or the repeated non-compliance with the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.

(...)”

IX

1. In relation to the aforementioned right to erasure of data, Recital 59 of the GDPR states that:

"59. Arrangements should be made to facilitate the exercise of the rights of the data subject under this Regulation, including mechanisms to request and, where appropriate, obtain free of charge, in particular, access to personal data and their rectification or erasure, as well as the exercise of the right to object. The data controller should also provide means for requests to be made electronically, in particular where personal data are processed by electronic means. The data controller shall be obliged to respond to the requests of the data subject without undue delay and, at the latest, within one month, and to explain its reasons in case it does not intend to comply with them."

And Recital 66 of the GDPR states that:

"66. In order to strengthen the 'right to be forgotten' in the online environment, the right to erasure should be extended so that the data controller who has made personal data public is obliged to inform controllers that are processing such personal data to erase any link to them, or copies or replicas of such data. In doing so, the data controller must take reasonable steps, taking into account the technology and means available to it, including technical measures, to inform the request of the data subject to the controllers that are processing the personal data."

In this case, the complainant has requested the erasure of their personal data from the respondent, and in response to this request, the respondent requested a copy of the ID card from the complainant to proceed with the erasure.

On this particular matter, it should be noted that the Guidelines 01/2022 on the rights of data subjects — Right of access Version 1.0 adopted the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/27

18/01/2022, it is noted, regarding the identification of the applicant, that the data controller must respond to requests from data subjects exercising their individual rights, unless it can demonstrate, through justification in accordance with the principle of proactive responsibility (Article 5.2), that it is unable to identify the data subject (Article 11).

And in particular regarding the assessment of proportionality in relation to the identification of the applicant, the aforementioned Guidelines state the following:

"69 As previously indicated, if the data controller has reasonable doubts about the identity of the applicant, it may request additional information to confirm the identity of the data subject. However, the data controller must ensure at the same time that it does not collect more personal data than necessary to allow the identification of the applicant. Therefore, the data controller will carry out a proportionality assessment, which must take into account the type of personal data being processed (for example, special categories of data or not), the nature of the request, the context in which the request is made, as well as any harm that may result from an improper disclosure. When assessing proportionality, it should be remembered to avoid excessive data collection while ensuring an adequate level of processing security.

70. The data controller must apply an authentication procedure (verification of the identity of the data subject) to be sure of the identity of the individuals requesting access to their data²⁸, and ensure the security of processing throughout the entire process of handling an access request in accordance with Article 32, including, for example, a secure channel for data subjects to provide additional information. The method used for authentication must be relevant, appropriate, proportionate, and respect the principle of data minimization. If the data controller imposes burdensome measures aimed at identifying the data subject, it must adequately justify this and ensure compliance with all fundamental principles, including data minimization and the obligation to facilitate the exercise of the rights of data subjects (Article 12, paragraph 2, of the GDPR). (...)

73. It is important to emphasize that the use of a copy of an identity document as part of the authentication process creates a risk to the security of personal data and may lead to unauthorized or unlawful processing, and therefore should be considered inadequate, unless it is strictly necessary,

appropriate, and in accordance with national law. In such cases, data controllers must have systems in place that ensure an adequate level of security to mitigate the greater risks to the rights and freedoms of the data subject when receiving such data. It is also important to consider that identification using an identity document does not necessarily assist in the online context (for example, with the use of pseudonyms) if the data subject cannot provide any other proof, such as other characteristics that match the user account.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
23/27

The respondent has not demonstrated the proportionality of their request, which could be excessive and hinder the exercise of the right to erasure. This is so because greater formalities cannot be required for the exercise of rights than those followed to obtain such data.

2. The documentation in the file provides clear indications that the respondent violated Article 17 of the GDPR, the right to erasure, as it was not addressed despite the claimant exercising their right. The claimant has stated that in response to the exercise of their right, the respondent indicated that they should send a copy of their ID. The respondent has pointed out that they were unable to provide the information requested by the Agency since the claimant had not provided a photocopy of their ID for the purpose of identification, which made it impossible to know which natural or legal person was involved and, therefore, which data was concerned. Furthermore, they requested the Agency to require the claimant to provide their ID.

Data protection regulations allow you to exercise your rights of access, rectification, opposition, erasure, restriction of processing, data portability, and not to be subject to individualized decisions before the data controller.

In accordance with the established regulations, it should be noted that a copy of the ID cannot be required for the exercise of your request when the data obtained from public registers, that is, from publicly accessible sources, as stated by the respondent, did not verify the identity either. This is so because greater formalities cannot be required for the exercise of rights than those followed to obtain such data. Therefore, Article 17 of the GDPR would have been violated in accordance with the aforementioned, an infringement classified under Article 83.5.b) of the GDPR.

X

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines pursuant to this article for the infringements of this Regulation referred to in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures referred to in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to approved certification mechanisms pursuant to Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger process following the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in those cases."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

25/27

assumptions in which there are controversies between them and any interested party."

- According to the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement typified in Article 83.5.a) and Article 6.1 of the GDPR for which the respondent is held responsible, an initial assessment considers the following factors to be concurrent:

As aggravating circumstances:

The nature and severity of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as legitimacy, which the regulation penalizes with the greatest severity. The personal data of the complainant has been processed by the respondent, without it being indicated that he is or has been a client of the entity or that he maintains any type of relationship with it (Article 83.2.a) of the GDPR).

The intentionality or negligence in the infringement. The facts revealed demonstrate that the respondent did not act with the diligence to which it was obliged, refusing to inform about the personal data and the cancellation of the same at the request of the complainant, as well as refusing to cooperate with the actions carried out by the Inspection Service.

The activity of the allegedly infringing entity is linked to the processing of personal data. Also connected with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the entry into force of the GDPR, its pronouncement is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...). The Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in

assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

- According to the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement typified in Article 83.5.b) and Article 17 of the GDPR for which the respondent is held responsible, an initial assessment considers the following factors to be concurrent:

As aggravating circumstances:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

26/27

The nature and severity of the infringement; it should not be forgotten that we are dealing with the infringement of a right of the interested party, the right to erasure, which has not been addressed by the entity; on the other hand, the regulation itself imposes the greatest severity on the absence and lack of attention to these types of rights, which are considered key in data protection regulations (Article 83.2.a) of the GDPR).

The intentionality or negligence in the infringement. The facts revealed demonstrate that the respondent did not act with the diligence to which it was obligated, refusing to provide information about personal data and to cooperate with the inspection carried out by the Inspection Service of the AEPD.

The activity of the allegedly infringing entity is linked to the processing of personal data. In the activity of the complained entity, the processing of personal data of clients and third parties is essential, so the significance of the conduct subject to this complaint is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on QUALITY-PROVIDER S.A., with NIF A87407243,

- For an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, a fine of 10,000 (ten thousand euros).

- For an infringement of Article 17 of the GDPR, classified under Article 83.5.b) of the GDPR, a fine of 10,000 (ten thousand euros).

SECOND: TO NOTIFY this resolution to QUALITY-PROVIDER S.A., with NIF A87407243.

THIRD: TO ORDER QUALITY-PROVIDER S.A., with NIF A87407243, that pursuant to Article 58.2.d) of the GDPR, within one month from the notification of this Resolution, to prove that it has taken measures to ensure that events like those that led to the sanctioning procedure do not occur again by processing personal data without any legitimacy as contemplated in Article 6.1 of the GDPR and without attending to the exercise of the right to erasure contemplated in Article 17 of the GDPR, despite the fact that the complainant exercised their right.

FOURTH: To warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

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of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. In the contrary case, collection will proceed in the executive period.

Upon receiving the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3.a) of the LPACAP, the final administrative resolution may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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